

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506657	DIEJOMAOH VS VOLKSWAGEN GROUP OF AMERICA, INC.	MOTION TO COMPEL FURTHER RESPONSES: PRODUCTION OF DOCUMENTS

Tentative Ruling:

The meet-and-confer requirement has been met.

RFP Nos. 30 and 31

RFP No. 30 seeks “All documents, in the form of a list or compilation, of other Customer Complaints in Your electronically stored information of database(s) that are substantially similar to complaints made by Plaintiff with respect to the subject vehicle in other 2022 Volkswagen Tiguan models.” This RFP also includes a definition for “substantially similar.”

RFP No. 31 seeks “All documents that refer to, reflect, or relate to any Field Report issued, or in the process of being issued, in response to complaints experienced by Plaintiff as described in Defendant’s warranty history/summary and within the line items of the repair orders created at Defendant’s authorized repair facility.”

Civil Code section 1794, subdivision (c), authorizes a civil penalty in lemon law cases “[i]f the buyer establishes that the failure to comply was willful.” A violation is willful if the manufacturer knew of its obligations but intentionally failed to fulfill them. (*Schreidel v. American Honda Motor Co.* (1995) 34 Cal.App.4th 1242, 1249-1250.) Thus, if Volkswagen was aware that its cars had issues and failed to rectify those issues or replace vehicles that had them, that information can help support application of the penalty in this case. Also, some cases have held that complaints of similar defects may be relevant in a Song-Beverly Act case. (See *Doppes v. Bentley Motors Inc.* (2009) 174 Cal.App.4th 967, 976-977, n. 2; *Donlen v. Ford Motor Company* (2013) 217 Cal.App.4th 138, 154 (*Donlen*).) In *Donlen*, the defendant car company argued that the court erred when it denied Defendant’s motion in limine to preclude evidence of “other vehicles” and non-warranty repairs. The appellate court rejected the argument:

[The expert’s] ‘other vehicle’ testimony ... did not concern simply other vehicles. It was limited to the transmission model Ford installed in plaintiff’s truck and other vehicles. [The expert] described what Ford itself had done to notify dealers and technicians about problems with this transmission model. Thus, everything about which he testified that applied to other vehicles applied equally to plaintiff’s vehicle. Such evidence certainly was probative and not unduly prejudicial.

(*Id.* at 154.)

While the question in *Donlen* was one of admissibility at trial, the case does indicate that information concerning other vehicles is at least relevant. (See *also Jensen v. BMW of North America, LLC* (S.D. Cal. 2019) 328 F.R.D. 557, 562 [allowing discovery regarding similar defects in other vehicles].)

A party is entitled to anything that “either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence” (C.C.P., § 2017.010), and here that includes evidence of defects in similar cars. Ultimately, it will be for the court that oversees the trial in this matter to determine whether evidence pertaining to any area of inquiry is relevant and admissible. In resolving a discovery dispute, the court is in no position to make that determination and can only attempt to foresee whether it is possible that information in a particular subject area could be relevant or admissible at the time of trial. (*Maldonado v. Super. Ct.* (2002) 94 Cal.App.4th 1390, 1397.)

The requested information is all relevant to Plaintiff’s claims. Given Plaintiff has demonstrated good cause for seeking this information.

As to RFP Nos. 30 and 31, the court grants the motion. Defendant is ordered to produce within ten (10) days supplemental Code-compliant further responses, without objections, to Plaintiff’s Request for Production of Documents, Set One, Request Nos. 30 and 31.

RFP Nos. 1-29

Given the additional production of documents, the court continues the hearing to September 30, 2026 at 8:30 a.m. as to RFP Nos. 1-29 and orders the parties to meet and confer in person, by telephone, or via visual conferencing about the sufficiency of the new document production within five (5) days of this order to determine if the new production resolves the issues. Moving party is ordered to submit a declaration addressing the parties’ efforts to meet and confer and the issues, if any, that remain. Moving party is ordered to submit the declaration at least five (5) court days prior to the next hearing date. Failure to do so may result in an order to show cause re: sanctions not to exceed \$1,500. No further briefing is permitted.